

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Counterfactual Opinion Affirming Corrected Rulings

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** May 29, 2026

Judge Vale delivered the unanimous counterfactual opinion, joined by Judges Quill and Reed. Open Grid challenges DOE’s withholding of portions of fictional cyber-response playbooks and the sealing of controlled judicial counterparts. The appeal was argued within the isolated exercise on May 12, 2026.

The corrected premise materially changes three features of the record while leaving DOE’s operational 7(E) evidence intact. It supplies function- and harm-specific 7(F) proof, an affirmative contextual segregability account, and passage-specific sealing findings with a finite duration and public counterparts.

On that assumed record, we affirm all four rulings. DOE has shown that authentic trigger order and implementation details fall within 7(E). Its limited human-function categories meet 7(F). The documented line review establishes release of every reasonably segregable portion. The corrected sealing order satisfies public-access requirements and uses the least restrictive effective arrangement.

This opinion never issued on the actual docket. It decides only the isolated hypothetical and has no legal or historical effect outside that branch.

Jurisdiction and Isolation

The district court entered a final judgment on January 2, 2026, and Open Grid filed a timely notice of appeal. That single actual district judgment supplies final-decision jurisdiction under 28 U.S.C. § 1291. Review includes the final FOIA merits rulings and the associated order concerning access to judicial materials.

The corrected premise does not create another district judgment. It asks us to assume improved evidentiary and sealing propositions while preserving the request, search, record inventory, procedural history, and finality facts. The hypothetical therefore changes the merits inputs, not the jurisdictional event.

Strict isolation matters. We do not consult the actual appellate disposition, and we do not combine this record with a mutually exclusive later training path. Conversely, no statement made here can establish an event, deadline, holding, or mandate on the actual appeal.

Open Grid argues that a premise cannot dictate a result. We agree. We independently apply FOIA and the law of public access. The premise identifies facts treated as true for this exercise; the legal consequence remains ours to decide. Because those facts cure the deficiencies presented for comparison, the proper counterfactual consequence is affirmance.

The Request and Agreed Scope

Open Grid requested final and superseded editions of the fictional Grid Sentinel Operational Decision Tree, Cyber-Incident Escalation Matrix, and Response-Coordination Appendix, together with final approval and supersession instruments. After written clarification, the effective period extended from January 1, 2022 through May 31, 2024.

The parties excluded drafts, comments, routine messages, actual incident material, telemetry, configurations, code, credentials, access data, real-infrastructure diagrams, and personal contact information. Approved exercise and quality-review editions remained within scope, and identical content was deduplicated to one authoritative copy.

Nothing in the appeal challenges that narrowing or the adequacy of the search. Open Grid instead disputes the exemptions, the evidence of segregability, and judicial closure. It expressly disclaims any request for a real name, route, threshold, system detail, or implementable response method.

Every sensitive-looking field in this corpus is synthetic. Public versions use descriptive notices, while controlled versions use arbitrary words without external referents. The legal analysis treats the authentic analogues posited by the premise; the documents themselves cannot reveal an operational fact.

Search and Production Accounting

DOE searched the fictional Beacon, Driftglass, and Harborline repositories. The initial collection contained 16,842 hits. Content and metadata deduplication reduced that set to 1,284 candidates. Forty-six candidates received custodian review, and twelve final records containing 200 logical source pages were deemed responsive.

The collection includes sixty decision-tree pages, fifty-four escalation-matrix pages, sixty-four coordination-appendix pages, and twenty-two governance pages. Three operational records totaling fifty-four pages were withheld completely. Seven playbook records totaling 124 pages were released with deletions, and two governance records totaling twenty-two pages were released in full.

The electronic production contains 146 images. Sixty-eight display no blackout and seventy-eight display one or more. Sixty-two redacted images cite 7(E), fifty-one cite 7(F), and thirty-five cite both. Every fully withheld page cites 7(E), and thirty-nine also cite 7(F).

These overlapping flags do not measure withheld word volume. They show how the agency accounted for pages. The corrected legal showing depends on the accompanying functional explanations and segregation worksheet, not on the size of the production.

Proceedings and the Corrected Premise

DOE issued an initial determination in August 2024. The administrative appeal was denied that October. Open Grid filed this fictional action in April 2025, and DOE answered the following month. The parties submitted declarations, Vaughn materials, paired samples, cross-motions, and sealing papers before final judgment.

For this branch, the isolation notice holds the operational 7(E) showing constant. It assumes that each retained 7(F) segment is linked to a functional group and an expected physical-safety harm. It also assumes a page-level contextual review explaining every release and retention.

The supplemental production remains seventeen passages on eleven replacement images. Six images receive two passages each; five receive one. No responsive record or source page is added. The assumed difference is evidentiary detail and completed separation, not a new search universe.

Finally, the corrected sealing ruling evaluates each controlled judicial counterpart, preserves a public version, identifies the applicable access interests, considers alternatives, and limits closure through thirty days after mandate absent renewed findings. We consider only those stated corrections and draw no inference beyond them.

Standards of Review and Proof

We review the legal application of FOIA exemptions de novo. The agency bears the burden of proving that withheld information fits an exemption. Summary judgment may rest on declarations and functional indexes when they are reasonably specific, grounded in personal knowledge, internally consistent, and not contradicted by evidence of bad faith.

Under *Rein v. United States Patent and Trademark Office*, descriptions must permit adversarial testing and meaningful judicial review. Segregability is an affirmative obligation: the agency must disclose any reasonably segregable nonexempt portion after deleting exempt material and show that it performed that task.

Functional grouping is permissible when founded on document-by-document examination and linked to the protected interest. *Zaid v. Department of Justice* does not allow a broad label to replace record analysis. A safety category must still satisfy the text of 7(F).

We review public-access questions independently and evaluate sealing findings under the governing access standard. *Company Doe v. Public Citizen* requires notice, alternatives analysis, and reasons specific enough to support closure. An agency's FOIA position does not itself establish that a judicial record may be sealed.

Law-Enforcement Purpose

The Grid Sentinel records were compiled to support prevention of, and coordinated response to, unlawful attacks against fictional critical infrastructure. Custodian testimony identifies their approved exercise function and distinguishes that purpose from mere storage or routine administration.

Emergency-response and training records can satisfy Exemption 7's threshold when they address criminal threats. *Public Employees for Environmental Responsibility v. United States Section, International Boundary & Water Commission* illustrates that principle while requiring a concrete explanation for the information actually withheld.

Open Grid accepts the threshold in this branch, and the record supports it. The fully released governance instruments also show that DOE did not equate association with Grid Sentinel with law-enforcement sensitivity. The qualifying purpose attaches to the operational relationships and human-protection coordination described by the declarations.

Our conclusion does not make the exercise real or disclose any technique. Scope excluded live incident and technical information. The synthetic labels are harmless. We decide only that, within the assumed facts, the final playbooks were compiled for the required purpose before considering whether the individual segments fit 7(E) or 7(F).

Exemption 7(E) Doctrine

Section 552(b)(7)(E) addresses techniques and procedures and also guidelines whose disclosure could reasonably be expected to risk circumvention of law. In *Grey v. Alfonso-Royals*, we explained that the risk clause modifies guidelines, not techniques and procedures. Nonpublic implementation detail may remain protected even where the general technique is known.

The distinction requires attention to function. A title or administrative sentence is not a technique simply because it appears in an operational document. The agency must identify the implementation relation or qualifying guideline and give a safe explanation of why the withheld content belongs to that category.

Here, public notices mark fictional decision predicates, relative response ordering, and guideline values. The controlled copies replace them with inert terms that communicate type and placement but no content. For guideline fields, DOE separately records the predicted circumvention risk.

The agency also recognizes limits. Approval dates, owners, neutral purpose statements, revision history, and general recordkeeping are disclosed when they remain meaningful. Relational position may be protected when it itself reveals implementation. That content-sensitive approach accords with the statutory text and *Grey*.

Application of 7(E)

The operational decision trees connect authentic predicates to an ordered review relation and a branch outcome. Disclosure of that pairing would reveal how the fictional procedure is implemented, not merely that decision trees exist. Selected matrix and appendix relations similarly expose implementation connections.

DOE treats guideline values separately. The corrected worksheet states how an authentic value could allow anticipation of a classification change and thereby risk circumvention. It does not repeat that prediction for a technique as an unnecessary additional element.

The separate withholding rule in 5 U.S.C. § 552(a)(8)(A) also applies. The unchanged declarations reasonably connect disclosure of authentic predicates, ordering, and implementation relations to reconstruction or anticipation of concealed operations, with resulting circumvention or reduced effectiveness. That prediction concerns the underlying relations, not the inert markers, and satisfies the foreseeable-harm requirement.

The page-linked review distinguishes administrative proximity. It releases title blocks, approval facts, ownership, neutral captions, version information, revision descriptions, and documentary closure where those items stand alone. In fully withheld trees, it explains why a proposed fragment either communicates the relation through location or has no useful meaning after deletion.

Open Grid accepts protection of genuine trigger order but asks us to articulate the boundary. We do so. We affirm only the operational-decision-tree target defined by the premise: nonpublic predicates, ordering and implementation relationships, and supported guideline values. We do not approve withholding of general administration by association.

Exemption 7(F) Doctrine

Section 552(b)(7)(F) protects law-enforcement information when disclosure could reasonably be expected to endanger an individual's life or physical safety. The agency need not identify the endangered person by name. It must still link the withheld information to a reasonable expectation of danger to someone.

Electronic Privacy Information Center v. Department of Homeland Security applies that standard and confirms that a valid safety rationale does not eliminate segregability. Categorical treatment is available when meaningful functional groups emerge from document-by-document review and share the relevant harm.

The corrected premise uses four groups: duty assignment, contact category, safety reference, and escalation placement. A retained segment is placed in a group only if it performs the stated function. A generic heading, general coordination sentence, or bare use of safety vocabulary does not qualify.

Dual markings receive two explanations. A segment may reveal an implementation relation under 7(E) and a protective human function under 7(F), but the existence of one does not prove the other. This disciplined structure is necessary because physical safety is a distinct statutory interest.

Application of the Corrected 7(F) Showing

The worksheet explains that disclosure of an authentic duty assignment could focus interference on a person performing a protective function. An authentic contact category could facilitate misdirection toward that function. A safety reference could identify the safeguard an interferer would seek to disrupt. An escalation placement could reveal when protective human participation becomes relevant.

Each retained segment is correlated to source, page, function, and expected harm. The explanation names no individual and exposes no method, yet it provides a logical disclosure-to-interference pathway. That is more than a statement that cyber-response information is generally sensitive.

The reviewers exclude neutral headings and administration from the groups. An escalation value receives 7(F) treatment only where human protection is actually implicated; otherwise, any protection depends on 7(E). Overlap entries state both rationales.

Open Grid's challenges demonstrate that the presentation permits adversarial testing. It can dispute whether a field performs the function and whether the inference is reasonable. On the corrected evidence, the correlations hold. We therefore affirm the limited 7(F) target without converting the ruling into categorical protection for every safety-adjacent word.

Vaughn Specificity

DOE's combined submission includes the primary and supplemental indexes, declarations from the processing officer, custodian, and search specialist, the contextual worksheet, and paired public and controlled samples. The pieces serve different functions and are evaluated together.

For every remaining segment, the assumed record identifies the source record and page, describes the field function, states the exemption, notes overlap, and explains the anticipated harm. The 7(E) entries distinguish predicates, order, implementation relations, and guidelines. The 7(F) entries distinguish the four human-function groups.

The public explanations stop short of revealing the withheld values but are specific enough for Open Grid to contest placement, category, causation, and separation. Authorized inert-label copies allow the court to compare asserted structure without learning a real secret. A controlled label is not treated as proof by itself.

This record satisfies *Rein* and *Zaid*. It neither reproduces protected content nor relies on statutory paraphrase. Because the descriptions correspond to meaningful functions and supported harms, they provide an adequate basis for de novo judgment.

Segregability Principles

FOIA requires disclosure of a reasonably segregable nonexempt portion after deletion of exempt matter. The agency must demonstrate both a review process and a supported conclusion. A statement that every page was examined is insufficient if it does not address meaningful material that can stand alone.

The corrected protocol asks four useful questions: whether visible words convey independent administrative meaning, whether position reveals a protected relation, whether a heading survives subordinate deletion, and whether general coordination can be detached from a human-function field. It records the result at segment level.

The record structure matters. These playbooks include title blocks, owners, effective dates, approval status, neutral purposes, revision explanations, quality-review directions, recordkeeping, and closure administration. Many such portions were released. Others may be retained only if their location communicates the protected relationship or subtraction leaves no useful content.

We evaluate the actual worksheet entries assumed by the premise rather than infer segregation from production volume. This approach preserves the statutory obligation even after we sustain particular 7(E) and 7(F) segments.

Application of the Line Review

The renewed review disclosed seventeen passages on eleven existing images. Six images gained two passages; five gained one. Decision records account for six passages across four images, an exercise matrix for three across two, the current appendix for five across three, and a predecessor appendix for three across two.

The released matter includes ownership, neutral headings, revision and approval facts, exercise recordkeeping, broad coordination, and closure administration. Those categories confirm that reviewers separated meaningful text from protected relationships rather than treating every operational record as indivisible.

For remaining segments, the worksheet states whether placement would reveal an implementation or human-function relation and whether deletion leaves useful words. It separately addresses proposed administrative fragments within the three wholly withheld records. The twelve-record, 200-page universe and 146-image production remain unchanged because replacements are not new source pages.

Open Grid identifies no retained passage overlooked by the corrected worksheet. Its concern is that the court must test the explanations; we have done so. The evidence affirmatively establishes that every remaining meaningful nonexempt portion was released. We affirm the segregability ruling without remand.

Public-Access Principles

Judicial records are not sealed merely because related agency material was withheld under FOIA. A court first identifies the source and strength of public access, provides notice and an opportunity to object, considers less restrictive alternatives, and makes specific findings explaining the closure selected.

Company Doe rejects broad secrecy based on generalized sensitivity. When First Amendment access applies, closure must serve a compelling interest and be narrowly tailored. A public redacted counterpart is an important alternative but does not by itself supply the required interest or findings.

The corrected premise respects that sequence. The hypothetical court identifies the access interests and the authentic implementation or human-function information discussed in each judicial passage. It assesses every controlled brief instead of sealing a filing category wholesale.

We review the legal sufficiency of those findings independently. Access technology matters only after the justification is established. Session grants, stable references, verification, and revocation cannot rescue an unsupported order, but they can help enforce a properly bounded one.

Application of Narrow Sealing

Each controlled opening, response, and reply brief has an equal-page public counterpart containing independent legal analysis, authorities, chronology, and requested relief. Closure is limited to the controlled passages that illustrate asserted authentic fields through inert labels. Other branch papers remain public.

The court considered full disclosure, targeted notices, narrative summary, restricted exhibits, delayed release, and broad closure. It chose paired filings because public readers receive the adjudicative substance immediately while authorized participants can compare placement. The order explains why unrestricted disclosure of genuine values would undermine the interests established in the corrected record.

Sealing expires thirty days after mandate unless changed circumstances support a new order. Public-only projection is the default. A grant identifies one disclosure, participant, session, and exact closure. Each open verifies path, size, digest, readability, and page count; revocation restores the public view and removes controlled metadata.

These findings and controls are document-specific, finite, and less restrictive than broader closure. They satisfy the applicable access requirements. We affirm the corrected sealing ruling, not the aggregate order that exists in the history held outside this premise.

Open Grid's Remaining Objections

Open Grid argues first that administrative proximity may still be mistaken for implementation. The corrected worksheet avoids that error by testing standalone meaning and positional disclosure. Our affirmance is expressly confined to supported operational relations and qualifying guidelines.

It next argues that a functional 7(F) label may obscure causation. Here, every retained entry states both function and expected interference, and neutral headings are excluded. The agency need not identify a person or disclose the very value at issue.

Open Grid also notes that seventeen releases prove earlier over-retention. True, but the question is the completed corrected review. That review acknowledges and fixes the errors, then explains each residual segment. FOIA does not require remand after the assumed record already contains a supported final determination.

Finally, Open Grid says session controls cannot justify sealing. We agree with the principle. The corrected order supplies notice, access analysis, alternatives, passage-specific reasons, and duration before invoking technical controls. The controls enforce narrow tailoring rather than replace it. None of these conclusions extends beyond the isolated premise.

Disposition

We affirm the ruling protecting nonpublic trigger order, implementation relationships, and supported guideline values under Exemption 7(E). The holding does not encompass titles, version information, approval facts, general descriptions, or other administration that stands independently.

We affirm the limited Exemption 7(F) ruling because the corrected record links duty assignments, contact categories, safety references, and human-linked escalation placement to a reasonable expectation of danger to a person. The holding does not create blanket protection for safety-adjacent text.

We affirm the segregability determination. The segment-level review, seventeen-passage release, and explanation of remaining relational or meaningless fragments establish that every reasonably segregable nonexempt portion was disclosed. We also affirm the corrected, document-specific sealing order because it preserves public counterparts, considers alternatives, states duration, and confines verified access.

No component is vacated and no remand is ordered. This full affirmance is a counterfactual training result that never appeared on the actual docket. The clerk shall enter a correspondingly isolated judgment.

AFFIRMED IN THE NEVER-FILED COUNTERFACTUAL BRANCH